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1(7)

COMPLAINANT
See attachment

SUPERVISION SUBJECT
Warner Music Sweden Aktiebolag

Decision following supervision – Warner Music Sweden AB
The decision of the Swedish Authority for Privacy Protection
The Swedish Authority for Privacy Protection (IMY) finds that Warner Music Sweden AB (Warner Music) (556055-2605) has processed the complainant's personal data in violation of Articles 6 and 7.3 of the General Data Protection Regulation (GDPR) as the company did not provide sufficient information regarding the right to withdraw consent.
IMY issues a reprimand to Warner Music based on Article 58.2 b of the GDPR.

Account of the supervision case

IMY has initiated supervision against Warner Music in order to investigate a complaint. The complaint is one of several complaints submitted to European data protection authorities regarding cookies and cookie banners. The complaints primarily concern the design of cookie banners, the placement of cookies, and the subsequent processing of personal data after the cookies have been placed on the complainant's browser or device. To facilitate cooperation regarding these complaints, a working group (Cookie Banner Taskforce) was established within the European Data Protection Board.

In light of the cross-border nature of the processing, IMY has utilized the cooperation and consistency mechanisms provided in Chapter VII of the GDPR. The relevant supervisory authorities have been the data protection authorities in Austria and Italy.

The complainant has stated the following. Warner Music processed the complainant's personal data on May 21, 2021, in violation of the GDPR as there was no valid consent. Warner Music did not provide a prominent option to withdraw consent, in the same way that there is to give consent. The lack of an option to withdraw that is as easily found as the cookie banner makes it not as easy to withdraw consent as it is to give it. Warner Music's information about the use of cookies on the website (in a so-called cookie banner) has been attached to the complaint.

1 Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

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Warner Music has stated the following. The legal basis for the subsequent processing of personal data collected through the setting of cookies is consent. The company meets the conditions for consent in

Article 7 of the GDPR, among other things, through the information provided in the company's cookie banner on the website. The cookie banner contains information about the use of cookies and information about the processing of personal data collected through the setting of cookies. Visitors to the website can make clear choices through the cookie banner to enable an informed and voluntary choice regarding the processing of personal data. Visitors are also informed through the cookie banner that they have the option to withdraw their consent at any time. The cookie banner indicates that the visitor can manage their cookie preferences on the company's website by clicking on "cookie settings." This link is displayed on all pages of the website.

Warner Music has further proposed changes to its cookie banner to include the wording "you can withdraw your consent at any time." The updates would mean that the wording is included in both the first and second layers of the banner.

Scope of the case

The Swedish Post and Telecom Authority is the sole competent supervisory authority over the Act (2022:482) on electronic communication (LEK), which sets specific requirements for the storage of cookies in terminal equipment or the collection of data from such equipment. The processing of personal data that occurs after collection, such as analysis or profiling, is, however, covered by the rules of the GDPR, where IMY is the competent supervisory authority. IMY's review has, against this background, been limited to the processing of personal data that has occurred after the data has been collected and the deficiencies that are claimed in the complaint regarding this subsequent processing.

Reasoning of the decision

Applicable provisions, etc.

The processing of personal data is only lawful if one of the conditions set out in Article 6 of the GDPR is met. The legal basis relevant in this case is consent according to Article 6.1 a.

Consent is defined in Article 4.11 of the GDPR as any form of voluntary, specific, informed, and unambiguous indication of will, by which the data subject, either by a statement or by a clear affirmative action, agrees to the processing of personal data concerning him or her. For consent to be valid, all these requirements must be met.

The requirement for personal data to be processed transparently in relation to the data subject follows from the principle of transparency in Article 5.1 of the Regulation. It is in light of this principle that the requirement for consent to be informed should be interpreted.

Article 7.3 of the GDPR stipulates that the data subject must have the right to withdraw consent at any time for consent to be valid. Before consent is given, the data subject must be informed of this. It must be as easy to withdraw as it is to give consent.

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The reasons for the General Data Protection Regulation indicate that individuals should be made aware of, among other things, their rights in connection with the processing of personal data and how they can exercise their rights regarding the processing.²

In the European Data Protection Board (EDPB) guidelines on consent, it is stated that consent does not have to be given and withdrawn through the same action; however, it should be equally easy. When consent is given electronically through a single mouse click, a swipe, or a keystroke, the data subjects must practically be able to withdraw their consent just as easily. If consent is obtained through a service-specific user interface (e.g., via a website or an app), the data subject must undoubtedly be able to withdraw consent through the same electronic interface, as it would require an unjustified effort to switch to another interface solely to withdraw consent. Furthermore, the data subject should be able to withdraw consent without any problems. This means, among other things, that a data controller must ensure that there is no cost associated with withdrawing consent and that the service is not diminished in any way.³

The EDPB further believes that information about the right to withdraw consent is a minimum

requirement for consent to be considered informed and thus valid. This information must be provided before the user gives their consent. Providing information about the possibility to withdraw is necessary for the user to exercise their right to withdraw consent. If the data controller does not provide easily accessible information, the user's consent becomes an invalid basis for processing.⁴ When data controllers request consent, they should ensure that they always use clear and unambiguous language. For example, the explanation of consent must be referred to as such. Phrases like "I understand that..." do not meet the requirements for clear language.⁵

The question in this case is whether there has been valid consent to process the complainant's personal data via cookies.

Assessment

Warner Music provides information that cookies are used on the website in a so-called cookie banner, which is displayed when the user first enters the website. In the first layer of the cookie banner, as it appeared at the time of the complaint, there are three equally prominent options: "Cookie settings," "Reject all," and "Accept all cookies." The following assessment is based on this cookie banner and the company's website.

Clear and unambiguous information about the right to withdraw consent

IMY believes that the data controller must provide information about the possibility to withdraw consent to meet the requirement for informed consent. Withdrawing consent is a right that every data subject has when consent has been used as a legal basis. It is therefore necessary for a user to receive this information before consent is given. The EDPB guidelines state that a data controller should always use clear and unambiguous language when requesting consent. IMY believes that the requirement for clear and unambiguous language should also apply to information about the withdrawal of consent. This means that it should be clearly and unambiguously stated to the complainant that they have the right to withdraw their consent.

2 Recital 39.

3 EDPB Guidelines 05/2020 on Consent under Regulation (EU) 2016/679, version 1.1, adopted on May 4, 2020, paragraphs 113-114. Swedish version.

4 Ibid. paragraphs 62-64 and 116.

5 Ibid. paragraph 67.

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Neither in the information text on the cookie banner nor on the website otherwise is there any mention of a user's right to withdraw their consent at any time. Instead, the information text on the cookie banner states that "You can manage your cookie preferences on our site now or later by clicking on 'Cookie settings'. In 'Cookie settings', it is stated 'Update your cookie settings at any time by clicking on 'Cookie settings' on all pages, which will take you back to this settings center'."

Providing information only about the possibility to manage cookie preferences or update settings is not sufficient for a user to understand that there is a right to withdraw their consent.

IMY considers, in light of Article 7.3 of the General Data Protection Regulation, Recital 39, and the EDPB's guidelines on consent, that Warner Music has not sufficiently informed the complainant of their right to withdraw consent in a clear manner that would allow them to exercise their rights. Therefore, the complainant cannot be considered to have given informed consent. Since there was no information about the right to withdraw, it has not been equally easy to withdraw consent as it was to give consent. Comparison of the procedures for giving and withdrawing consent

The complainant highlights the option of having a permanent hovering icon visible on all pages of the website to withdraw consent. IMY believes that a permanent hovering icon is an option that can meet the requirement that it should be as easy to withdraw consent as it is to give consent. However, IMY does not believe that the General Data Protection Regulation includes a requirement for a specific technical solution that all data controllers must use to meet the requirement in Article 7.3.

The assessment of whether it is as easy to withdraw consent as it is to give consent needs to be made

on a case-by-case basis based on the specific procedure used to give consent. This assessment is in line with the "Cookie Banner Taskforce report" and the EDPB's opinion on valid consent. During the relevant period when a user first visited Warner Music's website, the cookie banner appeared immediately. There, the user could consent to the use of all (non-essential) cookies with just one click. Once a user had given their consent in the cookie banner, the cookie banner disappeared. To withdraw consent, the registered user needed to click on the link "cookie settings" located at the bottom of the footer. Upon clicking the link, they arrived at a settings center, in the second layer of the view. In the settings center, the registered user needed to uncheck the categories of cookies they had previously consented to and then confirm their choices. In comparison with how consents were obtained on the website, fewer clicks were needed to give consent than to withdraw consent. Since the relevant period, Warner Music has changed its settings center that the registered user reaches after clicking on "cookie settings." The registered user no longer needs to uncheck the categories of cookies they consented to but can directly choose "reject all." IMY believes that this action has made it easier for the registered user to withdraw their consent. As a result of this improvement, IMY considers that the deficiency that existed at the time of the complaint, in this regard, no longer persists. The link "cookie settings" is permanently available on all pages of the website and

6 Report on the work carried out by the "Cookie Banner Taskforce," adopted on January 17, 2023, point 35, and opinion 08/2024 on valid consents regarding "Consent or Pay Models" implemented by major online platforms, adopted on April 17, 2024, point 169 (IMY's translation).

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the data subject can withdraw their consent with a click after pressing the link. IMY's assessment is therefore that this deficiency has been remedied.

Summary

Warner Music has not provided sufficiently clear information about the possibility of withdrawing consent, and thus the data subject has not been able to give informed consent. Since there has been no information about the right to withdraw, it has not been as easy to withdraw as it was to consent on the company's website [warnermusic.se](https://www.warnermusic.se). Consequently, there has not been valid consent and therefore no legal basis to process the complainant's personal data. Warner Music has thus processed the complainant's personal data in violation of Articles 6 and 7.3 of the General Data Protection Regulation.

Choice of Intervention

According to Article 58.2 and Article 83.2 of the General Data Protection Regulation, IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines shall be imposed in addition to or instead of the other measures referred to in Article 58.2, such as orders and prohibitions. Furthermore, Article 83.2 outlines the factors to be considered when deciding whether administrative fines should be imposed and when determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand in accordance with Article 58.2 b. Consideration shall be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant infringements.

IMY notes the following relevant circumstances. IMY has assessed that the company has not had a legal basis to process the complainant's personal data. Although Warner Music is not deemed to have made the withdrawal as easy as giving consent, there has been a possibility to withdraw consent via a permanently available link on the website. Warner Music has provided some information that the data subject can change their choices, although this has been assessed as insufficient. Warner Music has also made some improvements after the complaint to facilitate the data subjects' ability to withdraw consent. The company has not previously been found to have violated the General Data Protection Regulation. Since Warner Music has also stated that they intend to add clear and explicit information about the right to withdraw consent in their cookie banner, IMY finds no reason to order the company

to do this.

In a weighted assessment, IMY considers that this concerns minor infringements in the sense referred to in Recital 148 of the General Data Protection Regulation, which means that Warner Music should receive a reprimand in accordance with Article 58.2 b of the General Data Protection Regulation for the identified infringements.

This decision has been made by the unit manager Albin Brunskog after presentation by the lawyer Michaela Prieto Ceric.

Albin Brunskog

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Appendix

Complainant's Personal Data

Copy to

privacypolicy@wmg.com

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How to Appeal

If you wish to appeal the decision, you should write to IMY. Indicate in your letter which decision you are appealing and the change you are requesting. The appeal must be received by IMY within three weeks from the day you were notified of the decision. However, if you are a party representing the public interest, the appeal must be received within three weeks from the day the decision was announced. If the appeal has been submitted in a timely manner, IMY will forward it to the Administrative Court in Stockholm for examination.

You can email the appeal to IMY if it does not contain any sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.